

Form No: HCJD/C-121
ORDER SHEET

IN THE LAHORE HIGH COURT, BAHAWALPUR BENCH,
BAHAWALPUR
JUDICIAL DEPARTMENT

Election Appeal No.10 of 2018

Sardar Arsalan Haider Leghari Versus. Mr. Sajid Mehmood,
Civil Judge etc

Sr. No. Of Order/ Proceeding	Date of Order	Order with signatures of Judge, and that of parties of counsel, where necessary.
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21.06.2018 Mr. Mumtaz Mustafa, Advocate for appellant.
Mr. Muhammad Iqbal Mehr, AAG.
Hafiza Mehnaz Nadeem Abbasi, Legal Advisor,
Election Commission of Pakistan.

Aggrieved by the order dated 19.06.2018 passed by the Returning Officer, PP-265-XI, Rehim Yar Khan, wherein the appellant's nomination papers were rejected on the ground that at the time of filing of nomination papers the appellant was a citizen of Canada, the appellant has filed the instant appeal under section 63 of the Elections Act, 2017 on the ground that by filing application on 21.05.2018 the appellant has renounced his Canadian citizenship.

2. The learned counsel for the appellant mainly argues that the appellant has filed an application on 21.05.2018 before the Canadian High Commission, Islamabad by surrendering his original citizenship card, Canadian Passport and has also paid the fee of 100 Canadian Dollar. Hence, the appellant is entitled to contest the election and is not disqualified under Article 63(1)(c) of the Constitution of Islamic Republic of Pakistan, 1973. I have heard the arguments of the learned counsel for the appellant and perused the documents attached with this appeal.

3. There is no cavil to the proposition of law that in order to contest the election of the Parliament or to the Provincial Assembly or be a Member thereof, a person must possess the qualifications as enumerated in Article 62 of the Constitution and does not suffer from the disqualifications as mentioned in Article 63 of the Constitution. The election process can be broadly divided into two segments, one the period between the date of nominations of the candidates till the day before the polling which can be termed as a pre-poll stage while the second shall start with the day of the polling and terminates with the declaration of the result of the election and can be

signified as post poll stage. At the pre-poll stage the significant disputes which may arise in relation to the election, are about the valid nominations of the candidates, inter-alia, involving the question about their qualifications/disqualifications etc. As far as the dispute about the valid nominations of the candidates are concerned, section 62 of the Elections Act, 2017 lays down a comprehensive and a particularized procedure vis-à-vis the scrutiny of the nomination papers which specifically envisages the filing of objections thereto by the candidate, his election agent, proposer, seconder, an authorized person of each candidate or even a voter. Returning Officer is not only authorized of his own motion to examine the valid nomination of a candidate and to look into his qualifications/disqualifications but is also to decide the objections while scrutinizing the nomination papers and for the determination thereof, the Returning Officer may also conduct a summary inquiry for accepting or rejecting the nomination papers as he may deem fit, with the empowerment to require any authority or organization to produce any document or the record but the scope of such inquiry, however, is, short, brief,

concise and immediate and in any case shall be in contrast to a full fledged trial, especially when there shall be substantial and genuine controversy about the facts or the application of law which is dependent upon the factual resolution. Against the decision of Returning Officer, a candidate or the objector has a right to file an appeal before the Appellate Tribunal constituted for this purpose under section 63 of Elections Act 2017 and Appellate Tribunal shall summarily decide an appeal under subsection 2 of section 63 *ibid*, within such time as may be notified by the commission, on the basis of admitted/easily verifiable material/record to eminently and conclusively establish the qualification/ disqualification of the candidate. Although, the appellant has filed an application on 21.05.2018 by renouncing his Canadian Citizenship but same is still in the process and admittedly, no certificate has been issued by the Competent Authority to the effect that he is not a citizen of Canada. As such, at the filing of his nomination papers, on the date of scrutiny and even today, the appellant was/is still a Canadian citizen because the learned counsel for the appellant is unable to provide any document from Canadian Authorities

showing that the appellant's application for surrendering/renouncing Canadian citizenship has been accepted. In reported judgment titled "Syed Mehmood Akhtar Naqvi Vs. Federation of Pakistan through Secretary Law and others (PLD 2012 S.C. 1089), the Hon'ble Supreme Court held as under:

“43. If we compare Article 63(1) with Article 63(A) of the Constitution inserted by 18th Amendment, the intention of the Legislature becomes clear that Article 63(1) of the Constitution applied to pre and post-election disqualification, whereas Article 63(A) applied to post election disqualification on the ground of defection.....

53. As regards Mr. Zahid Iqbal, MNA vide order dated 18.03.2012, learned ASC appearing for Mr. Zahid Iqbal, MNA was directed to file evidence/ documents/ certificate issued by the competent authority

in terms of British Nationality Act, 1981 to the effect that he is not a citizen of UK but he failed to do so till date despite giving time, thus we have no option but to believe that Mr. Zahid Iqbal, MNA, is holding citizenship of United Kingdom, having Passport No. 300997046 of Britain.....

72. From bare reading of the said letter dated 29.05.2012 by U.K. Border Agency, it appears that Mr. A. Rehman Malik has been registered as having renounced British Citizenship on 29.05.2012. This aspect of the matter has already been discussed in our short order, thus need not be discussed in detail again but suffice it to say that apparently for this reason realizing legal position, he has resigned from membership of the Parliament on 11.07.2012 and against the vacant seat he participated in the fresh

elections and was declared successful candidate vide notification dated 24.07.2012”.

Reliance is also placed on judgment reported as “Syed Anwar Hasnat Vs. Returning Officer PP-27, Jhelum” (2013 CLC 1821).

4. In view of the above discussion, the appellant is not entitled/qualified to contest the election under Article 63(1)(c) because the Constitution of the Islamic Republic of Pakistan does not permit a person who has acquired the Citizenship of another State to become a member of Pakistan’s Parliament or of a Provincial Assembly.
5. On Court’s query, the appellant has also candidly conceded that he has not mentioned in his nomination papers or in attached documents, the nationalities of his wife as well as his children who are also citizens of Canada. Hence, by not mentioning the nationalities of his wife and children, the defect of a substantial nature has also accrued.

6. In view of above, I find no infirmity or illegality in the impugned order of the Returning Officer and consequently this appeal is **dismissed in limine.**

(MASUD ABID NAQVI)
Appellate Tribunal

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